4.14 RM9 AND RM10 ZONES (BACK TO BACK AND STACKED TOWNHOUSES)

4.14.1 RM9 and RM10 Permitted Uses and Zone Regulations

All **buildings** and **structures** shall comply with the provisions contained in Parts 1 to 3 and Section 4.1 of this By-law, and the **uses** and zone regulations specified within the applicable zone column contained in Table 4.14.1 - RM9 and RM10 Permitted Uses and Zone Regulations. *(0181-2018/LPAT Order 2019 February 15/2019 September 11)*

Table 4.14.1 - RM9 and RM10 Permitted Uses and Zone Regulations
(0181-2018/LPAT Order 2019 February 15/2019 September 11), (0018-2021), (0114-2025)

Column	**A**	**B**	**C**
Line 1.0	**ZONES**	**RM9**	**RM10**
PERMITTED USES			
2.0	RESIDENTIAL		
2.1	**Stacked Townhouse**	✓	
2.2	**Back to back townhouse** on a **condominium road**		✓
ZONE REGULATIONS			
3.0	MINIMUM **LOT FRONTAGE**	38.0 m	38.0 m
4.0	MINIMUM **DWELLING UNIT WIDTH**	4.5 m	4.5 m
5.0	MAXIMUM DWELLING **HEIGHT**		
5.1	MAXIMUM **HEIGHT - HIGHEST RIDGE**: **sloped roof**	17.0 m and 4 **storeys**	15.0 m and 3 **storeys**
5.2	MAXIMUM **HEIGHT**: **flat roof**	13.0 m and 4 **storeys**	11.0 m and 3 **storeys**
5.2.1	Calculation of maximum **height** shall be exclusive of **structures** for rooftop access, provided that the **structure** complies with the following:		
5.2.1.1	maximum **height**	3.0 m	3.0 m
5.2.1.2	maximum **floor area**	20.0 m^2	20.0 m^2
5.2.1.3	minimum setback from the exterior edge of the **building**	3.0 m	3.0 m
6.0	MINIMUM **FRONT YARD**	7.5 m (2)	7.5 m (2)
7.0	MINIMUM **EXTERIOR SIDE YARD**	7.5 m (2)	7.5 m (2)
8.0	MINIMUM **INTERIOR SIDE YARD**	4.5 m (2)	4.5 m (2)
8.1	Where any portion of the **interior side lot line** abuts a zone permitting **detached dwellings** and/or **semi-detached**	9.0 m (2)	7.5 m (2)
8.2	Where the **interior side lot line** abuts a RM4, RM5, RM6, RM8, RM9, RM10, RM11, or RM12 zone and the rear wall of the **building** abuts the **interior side lot line**	7.5 m (2)	n/a
8.3	Where the front wall of a **building** abuts the **interior side lot line**	9.0 m (2)	9.0 m (2)
9.0	MINIMUM **REAR YARD**	7.5 m (2)	7.5 m (2)
9.1	Where any portion of the **rear lot line** abuts a zone permitting **detached dwellings** and/or **semi-detached**	9.0 m (2)	7.5 m (2)
9.2	Where the front wall of the **building** abuts the **rear lot line**	9.0 m (2)	9.0 m (2)

Table 4.14.1 continued on next page

Column	A	B	C
Line 1.0	**ZONES**	**RM9**	**RM10**
Table 4.14.1 continued from previous page			
10.0	PROJECTIONS		
10.1	Maximum projection of a **balcony**, awning or **deck**, exclusive of stairs, from the outermost face or faces of the **building**	2.0 m	2.0 m
10.2	Maximum projection of any part of a **building**, including architectural features but exclusive of stairs, above a below grade patio	50% of the depth of the patio	n/a
11.0	MINIMUM INTERNAL SETBACKS		
11.1	From a **garage face** to a **condominium road** or sidewalk	6.0 m	6.0 m
11.2	From a **garage face** to a **condominium road** or sidewalk, where the **garage** and **driveway** are accessed at the rear of the **dwelling unit**	1.0 m	n/a
11.3	From the front wall of a **building** to a **condominium road**, sidewalk, walkway or **parking space** not located on a **driveway**	4.5 m	4.5 m
11.4	From a **porch**, exclusive of stairs, located at and accessible from the **first storey** or below the **first storey**, to a **condominium road**, sidewalk, walkway or **parking space**	2.5 m	2.5 m
11.5	From a rear wall of a **building** to a side wall of another **building** on the same **lot**	12.0 m	n/a
11.6	From a rear wall of a **building** to a rear wall of another **building** on the same **lot**	15.0 m	n/a
11.7	From a side wall of a **building** to a side wall of another **building** on the same **lot**	3.0 m	3.0 m
11.8	From a side wall of any **building** to a walkway	1.5 m	1.5 m
11.9	From a side wall of a **building** to a **condominium road**, sidewalk, or **parking space**	3.0 m	3.0 m
11.10	From a front wall of a **building** to a front wall of another **building** on the same **lot**, where the **building** is less than or equal to three **storeys**	12.0 m or where there are **buildings** with different **heights** on one **lot**, the average of the required setbacks	12.0 m
11.11	From a front wall of a **building** to a front wall of another **building** on the same **lot**, where the **building** is less than or equal to three **storeys** and contains a **dwelling unit** in the **basement**	15.0 m	n/a
11.12	From a front wall of a **building** to a front wall of another **building** on the same **lot**, where the **building** is four **storeys**	15.0 m or where there are **buildings** with different **heights** on one **lot**, the average of the required setbacks	n/a
11.13	From a front wall of a **building** to a side wall of another **building** on the same **lot**	9.0 m or where there are **buildings** with different **heights** on one **lot**, the average of the required setbacks	9.0 m
11.14	The area created by the minimum separation distance between **buildings** may not include the required **amenity area**		
12.0	ATTACHED **GARAGE**, PARKING AND **DRIVEWAY**		
12.1	Attached **garage**	Permitted (5)	Permitted (5)
12.2	Minimum **parking spaces**	✓ (6) (7)	✓ (6) (7)

Table 4.14.1 continued on next page

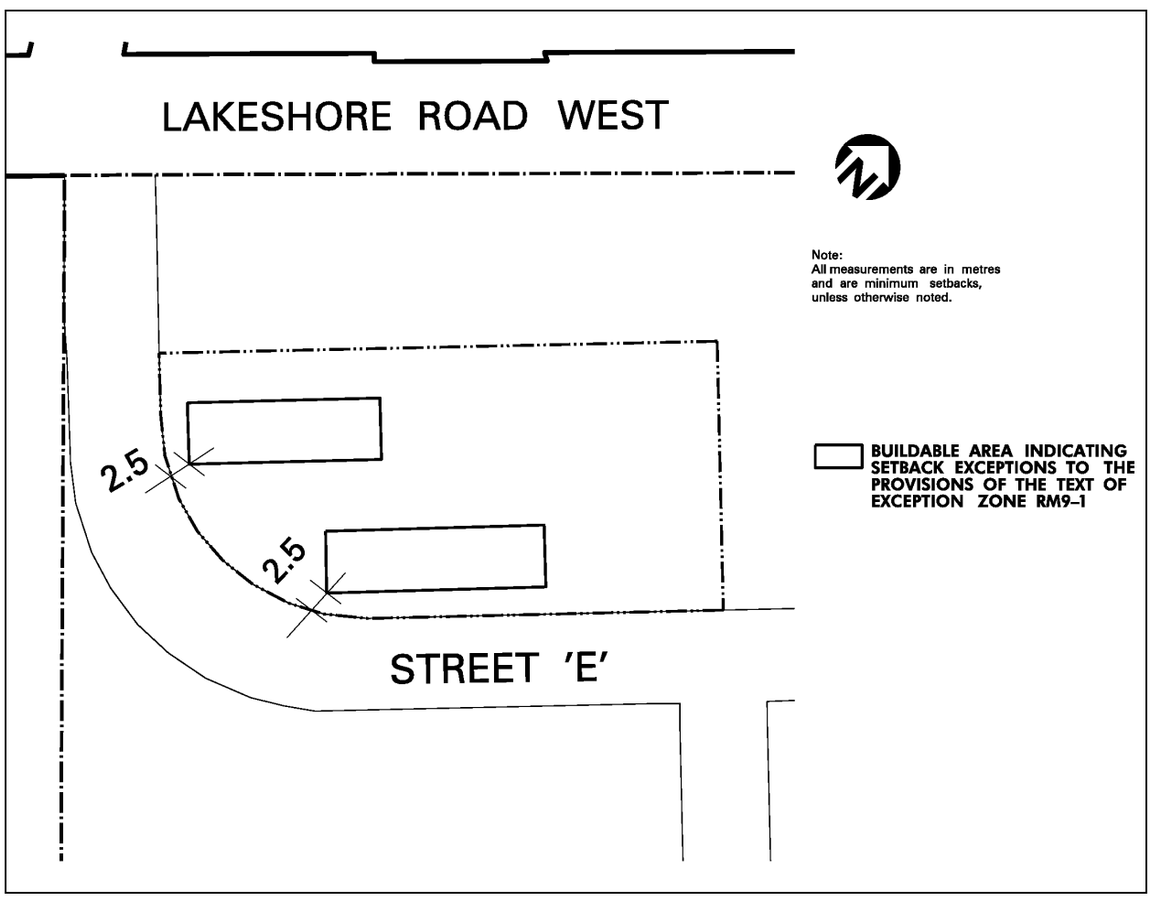
Column	A	B	C
Line 1.0	**ZONES**	**RM9**	**RM10**
Table 4.14.1 continued from previous page			
12.3	Minimum visitor **parking spaces**	✓ (6)	✓ (6)
12.4	Maximum **driveway** width	2.6 m (7)	2.6 m (7)
13.0	**PARKING AREAS** AND **PARKING STRUCTURE** SETBACKS		
13.1	Minimum setback between a **parking space** and an **interior side lot line** and/or **rear lot line**	3.0 m	3.0 m
13.2	Minimum setback of a **parking structure** constructed above or partially above finished grade to any **lot line**	6.0 m	6.0 m
13.3	Minimum setback of a **parking structure** constructed completely below finished grade to any **lot line**	3.0 m	3.0 m
14.0	**CONDOMINIUM ROADS**, SIDEWALKS AND WALKWAYS		
14.1	Minimum width of a **condominium road**	7.0 m	7.0 m
14.2	**Condominium roads** are permitted to be shared with abutting lands zoned to permit **back to back townhouse**, **stacked townhouse**, **townhouse** or **apartment**, or any combination thereof	✓	✓
14.3	Minimum width of a sidewalk traversed by a **driveway**	2.0 m	2.0 m
14.4	Minimum width of a sidewalk not traversed by a **driveway**	1.5 m	1.5 m
15.0	MINIMUM **AMENITY AREA** AND **LANDSCAPED AREA**		
15.1	Minimum **landscaped area**	40% of **lot area**	40% of **lot area**
15.2	Minimum required **landscaped soft area**	50% of **landscaped area**	50% of **landscaped area**
15.3	Minimum **landscaped buffer** abutting any side and **rear lot line**	3.0 m	3.0 m
15.4	Minimum contiguous **amenity area**, excluding private outdoor space	The greater of 2.8 m^2 per **dwelling unit** or 5% of the **lot area**	The greater of 2.8 m^2 per **dwelling unit** or 5% of the **lot area**
15.5	Minimum setback from an **amenity area** to a **building** and to any type of road	3.0 m	3.0 m
15.6	A setback from an **amenity area** shall be unencumbered except for a perpendicular walkway and shall consist of only soft landscaped material	✓	✓
15.7	Minimum contiguous private outdoor space per unit	6.0 m^2	6.0 m^2
15.8	Notwithstanding Line 15.7 of this Table, minimum contiguous private outdoor space per unit when located on a **balcony**	4.5 m^2	4.5 m^2
15.9	Minimum setback of a rooftop amenity space from all exterior edges of a **building** adjacent to low density residential development	1.0 m	1.0 m

NOTES:
(1) *deleted by 0018-2021.*
(2) See also Subsections 4.1.7 and 4.1.8 of this By-law.
(3) *deleted by 0018-2021.*
(4) *deleted by 0018-2021.*
(5) See also Subsection 4.1.12 of this By-law.
(6) See also Part 3 of this By-law.
(7) See also Subsection 4.1.9 of this By-law.
(8) *deleted by 0018-2021.*
(9) *deleted by 0018-2021.*

4.14.2 RM9 Exception Zones

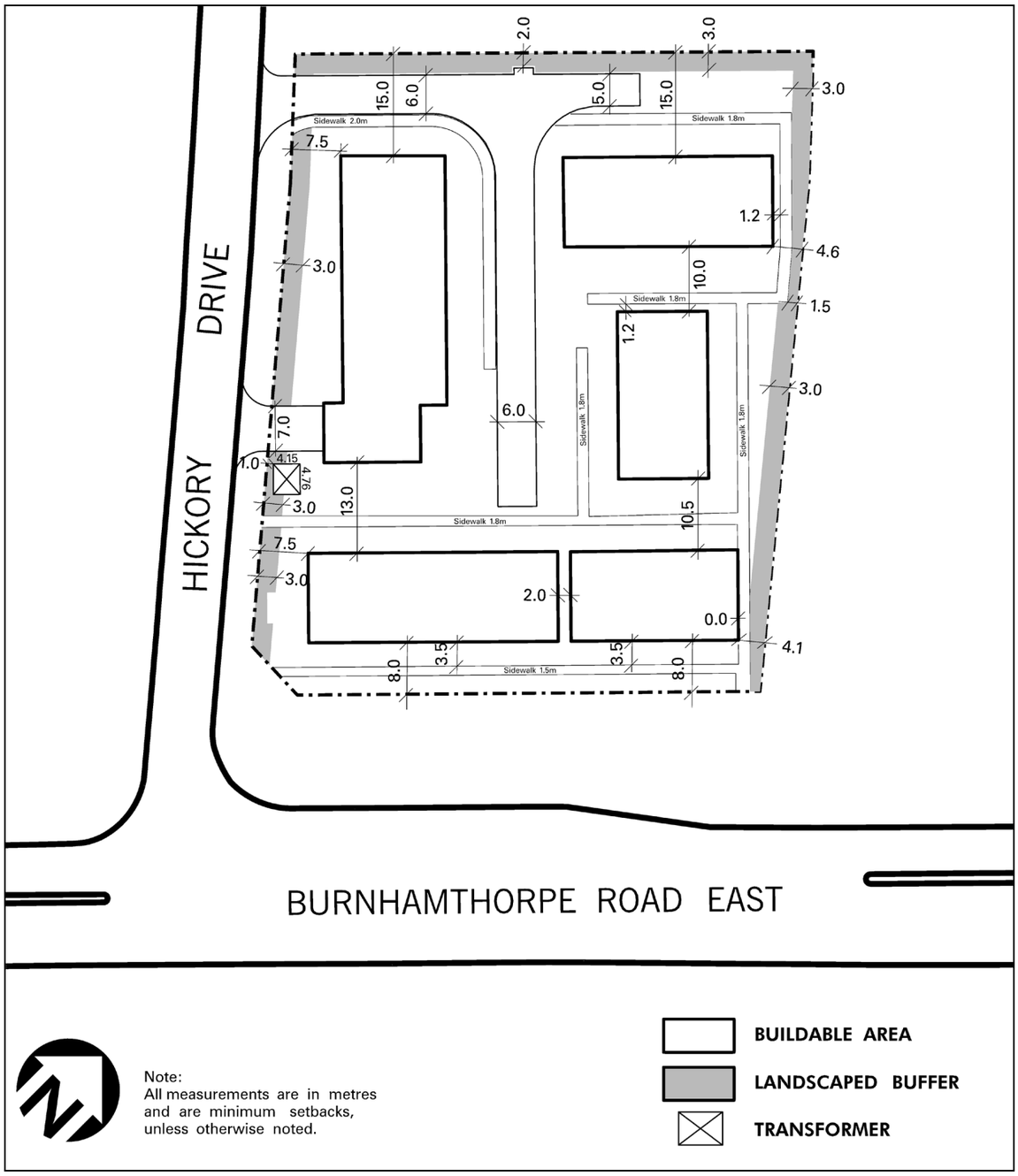
Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

4.14.2.1	Exception: RM9-1	Map # 08	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, LPAT Order 2019 November 15
In a RM9-1 zone the permitted **uses** and applicable regulations shall be as specified for a RM9 zone except that the following **uses**/regulations shall apply:			
Regulations			
4.14.2.1.1	The regulations of Line 15.3 contained in Table 4.14.1 of this By-law shall not apply		
4.14.2.1.2	Minimum **landscaped area**		30% of the **lot area**
4.14.2.1.3	Minimum setback to a road or **condominium road**		4.0 m
4.14.2.1.4	Minimum setback of a **parking structure** constructed completely below finished grade to any **lot line**		1.0 m
4.14.2.1.5	Minimum number of resident **parking spaces** per **dwelling unit**		1.0
4.14.2.1.6	Minimum number of visitor **parking spaces** per **dwelling unit**		0.15
4.14.2.1.7	All site development plans shall comply with Schedule RM9-1 of this Exception		



Schedule RM9-1
Map 08

4.14.2.2	Exception: RM9-2	Map # 27	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, OLT Order 2021 September 24
In a RM9-2 zone the permitted **uses** and applicable regulations shall be as specified for a RM9 zone except that the following **uses**/regulations shall apply:			
Regulations			
4.14.2.2.1	The regulations of Lines 11.4 and 15.5 contained in Table 4.14.1 of this By-law shall not apply		
4.14.2.2.2	Maximum number of **dwelling units** on all lands zoned RM9-2		102
4.14.2.2.3	Maximum **floor space index**		1.3
4.14.2.2.4	Notwithstanding Sentence 4.14.2.2.12 of this Exception, maximum projection of a **porch**, **balcony**, awning or **deck**, exclusive of stairs, from the outermost face or faces of the **building**		1.5 m
4.14.2.2.5	Notwithstanding Sentence 4.14.2.2.12 of this Exception, maximum encroachment of a **porch**, **balcony**, awning or **deck**, exclusive of stairs, into a required **yard**		1.5 m
4.14.2.2.6	Minimum setback from a **porch**, exclusive of stairs, located at and accessible from the **first storey** or below the **first storey**, to a **condominium road**, sidewalk or **parking space**		1.5 m
4.14.2.2.7	Minimum number of resident **parking spaces** per **dwelling unit**		1.4
4.14.2.2.8	Minimum number of visitor **parking spaces**		21
4.14.2.2.9	Minimum required **landscaped soft area**		39% of **landscaped area**
4.14.2.2.10	Maximum area of the **condominium road** that may be considered **landscaped area**		285 m^2
4.14.2.2.11	Minimum contiguous private outdoor space per unit		2.5 m^2
4.14.2.2.12	All site development plans shall comply with Schedule RM9-2 of this Exception		



Schedule RM9-2
Map 27

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
4.14.2.3	Exception: RM9-3	Map # 01	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, 0119-2022
In a RM9-3 zone the permitted **uses** and applicable regulations shall be as specified for a RM9 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
4.14.2.3.1	(1) **Back to back townhouse** on a **condominium road** (2) **Back to back townhouse** on a **CEC - road** (3) **Townhouse** (4) **Townhouse** on a **CEC - road**		
Regulations			
4.14.2.3.2	The provisions of Lines 9.0 and 9.2 contained in Table 4.14.1 of this By-law shall not apply		
4.14.2.3.3	Minimum **exterior side yard**		3.5 m
4.14.2.3.4	Minimum **interior side yard**		3.5 m
4.14.2.3.5	Maximum projection of a **balcony**, awning, **porch** or **deck**, exclusive of stairs, from the outermost face of the front wall of the **building**		2.4 m
4.14.2.3.6	Maximum projection of an awning, **porch** or **deck**, located at and accessible from the **first storey** or below the **first storey**, inclusive of stairs from the outermost face of the rear wall of the **building**		4.5 m
4.14.2.3.7	Maximum encroachment of an awning, **porch** or **deck**, located at and accessible from the **first storey** or below the **first storey**, inclusive of stairs, into the required **rear yard**		4.5 m
4.14.2.3.8	Minimum setback from a **garage face** to a **street**, **condominium road**, **CEC - road**, sidewalk or walkway		6.0 m
4.14.2.3.9	Minimum setback from the front wall of a **building** to an abutting condominium **rear lot line** or **interior side lot line**		7.5 m
4.14.2.3.10	Minimum setback from a rear wall of a **building** to a side wall of another **building** on the same **lot**		9.0 m
4.14.2.3.11	Minimum setback from a side wall of a **building** to an abutting condominium **rear lot line**		3.5 m
4.14.2.3.12	Minimum setback from a side wall of a **building** to a **condominium road**, **CEC - road**, **CEC - amenity area**, sidewalk, walkway or **parking space**		2.5 m
4.14.2.3.13	Minimum setback from the front or rear wall of a **building** to an abutting OS2-18 zone		4.5 m
4.14.2.3.14	Minimum setback of all **buildings** and **structures** to a G2-5 zone		3.5 m
4.14.2.3.15	Maximum **driveway** width		3.0 m
4.14.2.3.16	Minimum setback between a surface **parking space** and an **interior side lot line** or **rear lot line**		2.0 m
4.14.2.3.17	Minimum setback of a **parking structure** constructed above or partially above finished grade to any **lot line**		4.5 m
4.14.2.3.18	Minimum setback of a **parking structure** constructed completely below finished grade to any **lot line**		1.0 m
4.14.2.3.19	Notwithstanding Sentence 4.14.2.3.18 of this Exception, minimum setback of a **parking structure** constructed completely below finished grade to an OS2-18 zone		1.5 m

Exception RM9-3 continued on next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
4.14.2.3	Exception: RM9-3	Map # 01	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, 0119-2022

Exception RM9-3 continued from previous page

4.14.2.3.20	Required **parking areas** located in an underground **parking structure**, **amenity area** and **landscaped area** are permitted to be shared with abutting lands zoned RA5-59 and C4-76	
4.14.2.3.21	Minimum width of a **condominium road**	6.1 m
4.14.2.3.22	**Landscaped areas** and **landscaped soft areas** may include **decks** and patios	
4.14.2.3.23	Minimum **landscaped buffer** abutting lands zoned OS2-18	1.5 m
4.14.2.3.24	A **stacked townhouse** shall comply with the following regulations:	
	(1) minimum **dwelling unit width**	4.5 m
	(2) minimum **front yard**	4.5 m
	(3) minimum setback from the front wall of a **townhouse** to a **street line**, **condominium road**, sidewalk, walkway or visitor **parking space**	4.5 m
	(4) minimum setback from the rear wall of a **townhouse** to a **street line**, **lot line**, **condominium road**, sidewalk, walkway or visitor **parking space**	6.0 m
	(5) maximum encroachment of a **balcony**, **porch**, awning or **deck**, exclusive of stairs into the required **front yard**	2.4 m
	(6) minimum **landscaped area**	30%
4.14.2.3.25	A **back to back townhouse** on a **condominium road** shall comply with the following regulations:	
	(1) minimum **dwelling unit width**	4.5 m
	(2) minimum **front yard**	3.5 m
	(3) minimum setback from the front wall of a **townhouse** to a **street line**, **condominium road**, sidewalk, walkway or visitor **parking space**	3.5 m
	(4) maximum encroachment of a **balcony**, **porch** awning or **deck**, exclusive of stairs into the required **front yard**	2.4 m
	(5) minimum **landscaped area**	30%
4.14.2.3.26	A **back to back townhouse** on a **CEC - road** shall comply with the following regulations:	
	(1) the provisions of Lines 3.0 and 15.1 contained in Table 4.14.1 of this By-law shall not apply	
	(2) minimum **dwelling unit width**	4.8 m
	(3) minimum **front yard**	4.5 m
	(4) minimum **interior side yard** - attached side	0.0 m
	(5) minimum **interior side yard** - unattached side	1.5 m
	(6) minimum **interior side yard** where the **interior side lot line** abuts a CEC - **landscaped buffer**	3.5 m
	(7) minimum **exterior side yard** where the **exterior side lot line** abuts a **CEC - road** or CEC - sidewalk	2.5 m
	(8) maximum encroachment of a **balcony**, **porch**, awning or **deck** inclusive of stairs located at and accessible from the **first storey** or below the **first storey** into the required **front** and **exterior side yards**	1.5 m

Exception RM9-3 continued on next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
4.14.2.3	Exception: RM9-3	Map # 01	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, 0119-2022

Exception RM9-3 continued from previous page

4.14.2.3.26 (continued)	(9)	minimum CEC - **landscaped buffer** abutting any side and **rear lot line**	3.0 m
	(10)	minimum contiguous **CEC - amenity area**	The greater of 2.8 m^2 per **dwelling unit** or 5% of the **lot area**
4.14.2.3.27	A **townhouse** shall comply with the following regulations:		
	(1)	minimum **dwelling unit width**	4.8 m
	(2)	minimum **front yard**	3.5 m
	(3)	minimum setback from the front wall of a **townhouse** to a **street line**, **condominium road**, sidewalk, walkway or visitor **parking space**	3.5 m
	(4)	minimum setback from the rear wall of a **townhouse** to any **lot line**, **condominium road**, sidewalk, walkway, or visitor **parking space**	6.0 m
	(5)	maximum encroachment of a **balcony**, **porch**, awning or **deck**, exclusive of stairs into the required **front yard**	2.4 m
	(6)	minimum **landscaped area**	30%
4.14.2.3.28	A **townhouse on a CEC - road** shall comply with the following regulations:		
	(1)	the provisions of Line 3.0 contained in Table 4.14.1 of this By-law shall not apply	
	(2)	minimum **dwelling unit width**	4.8 m
	(3)	minimum **front yard**	4.5 m
	(4)	minimum **interior side yard** - unattached side	0.0 m
	(5)	minimum **interior side yard** - attached side	1.5 m
	(6)	minimum **interior side yard** where **interior side lot line** is the **rear lot line** of an abutting parcel	2.5 m
	(7)	minimum **exterior side yard** where the **exterior side lot line** abuts a **CEC - road** or CEC - sidewalk	2.5 m
	(8)	minimum **rear yard**	6.0 m
	(9)	maximum encroachment of a **balcony**, **porch**, awning or **deck** inclusive of stairs located at and accessible from the **first storey** or below the **first storey** into the required **front** and **exterior side yards**	1.5 m
	(10)	minimum **landscaped area**	20%
4.14.2.3.29	A **public school** shall comply with the provisions contained in Table 2.1.9.1 of this By-law except that:		
	(1)	minimum **front**, side and **rear yard - public school**	3.0 m
	(2)	maximum **height - public school**	25.0 m
	(3)	minimum amount of required parking to be located underground	80%

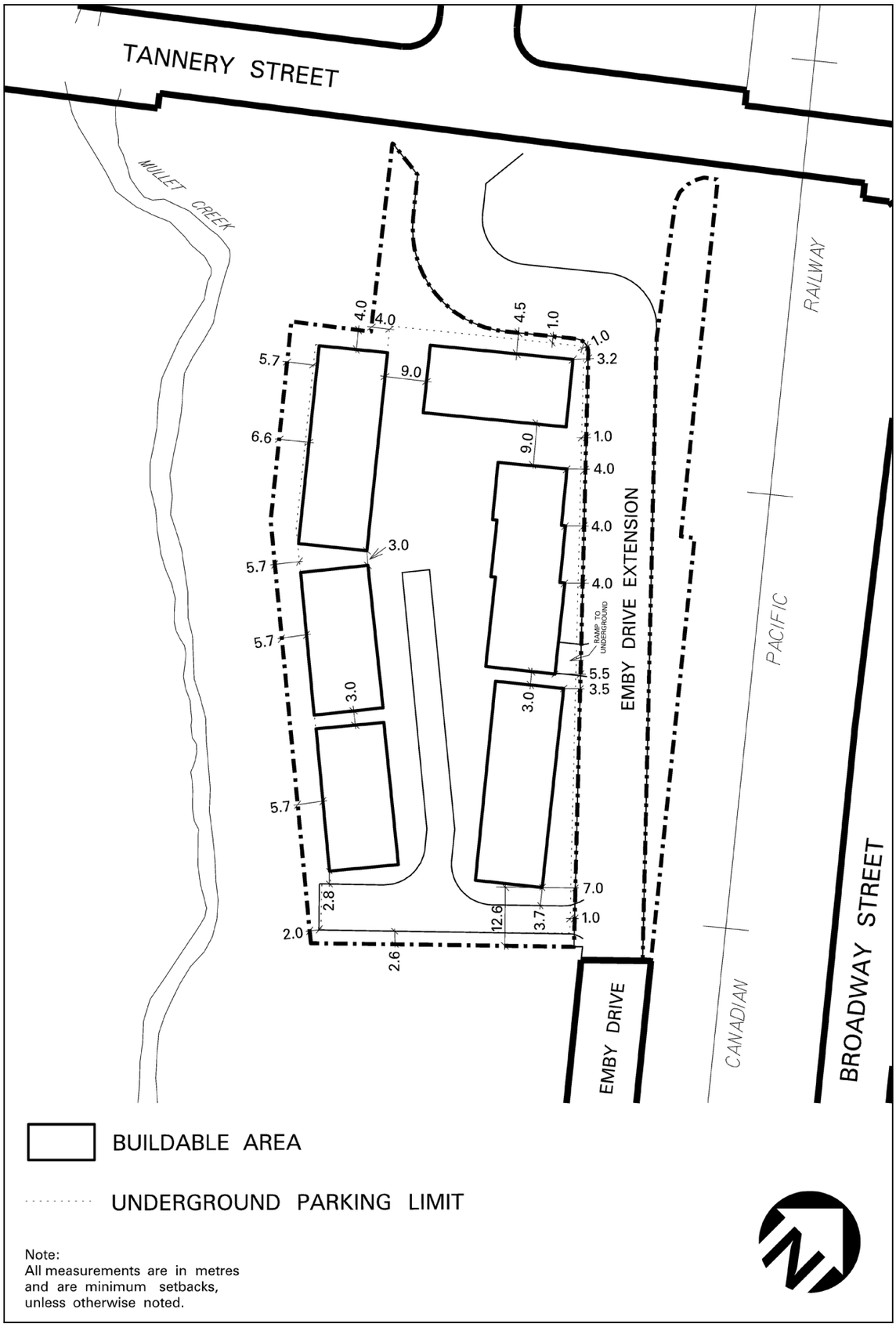
Exception RM9-3 continued on next page

Refer to Minister Zoning Order (MZO) O. Reg. 91/23 2023 May 12			
4.14.2.3	Exception: RM9-3	Map # 01	By-law: *deleted by 0181-2018/LPAT Order 2019 February 15*, 0119-2022
Exception RM9-3 continued from previous page			
Holding Provision			
The holding symbol H is to be removed from the whole or any part of the lands zoned H-RM9-3 by further amendment to Map 01 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirement: (1) the provisions contained in Article 2.1.33.7 of this By-law as they relate to lands zoned H-RM9-3 and subject to holding provisions H1, H2, H3, H4 and H5.			

4.14.2.4	Exception: RM9-4	Map # 39E	By-law: 0365-2007, *deleted by 0181-2018/LPAT Order 2019 February 15*, 0259-2021/ OLT Order 2023 March 03, 0208-2022
In a RM9-4 zone the permitted **uses** and applicable regulations shall be as specified for a RM9 zone except that the following **uses**/regulations shall apply:			
Regulations			
4.14.2.4.1	The provisions contained in Subsections 2.1.30, 4.1.7, 4.1.8, and the regulations of Lines 10.1, 11.0, 13.2, 13.3, 15.3 and 15.6 contained in Table 4.14.1 of this By-law shall not apply		
4.14.2.4.2	A **dwelling unit** shall be permitted in the **basement** of a **stacked townhouse** provided that the finished floor level of the **dwelling unit** is not more than 1.3 m below the highest grade level immediately adjacent to the **dwelling unit** at any point		
4.14.2.4.3	Maximum **height**		12.5 m and 4 **storeys**
4.14.2.4.4	For the purpose of this Exception, the **height** of a **stacked townhouse** shall be measured from **established grade**		
4.14.2.4.5	Notwithstanding Sentence 4.14.2.4.11 of this Exception, maximum encroachment of an awning or **deck**, exclusive of stairs into a required **yard** abutting Emby Drive		2.0 m
4.14.2.4.6	Notwithstanding Sentence 4.14.2.4.11 of this Exception, maximum encroachment of an awning or **deck**, exclusive of stairs into a required **yard** abutting a G1 zone		2.0 m
4.14.2.4.7	Notwithstanding Sentence 4.14.2.4.11 of this Exception, maximum projection outside the **buildable area** identified on Schedule RM9-4 of this Exception, of a below grade patio, awning or **deck**, inclusive of stairs from a **stacked townhouse**		5.8 m
4.14.2.4.8	Minimum number of resident **parking spaces** per condominium stacked townhouse **dwelling unit**		1.3
4.14.2.4.9	Minimum number of visitor **parking spaces** per condominium stacked townhouse **dwelling unit**		0.20
4.14.2.4.10	Minimum width of a **condominium road**		6.0 m

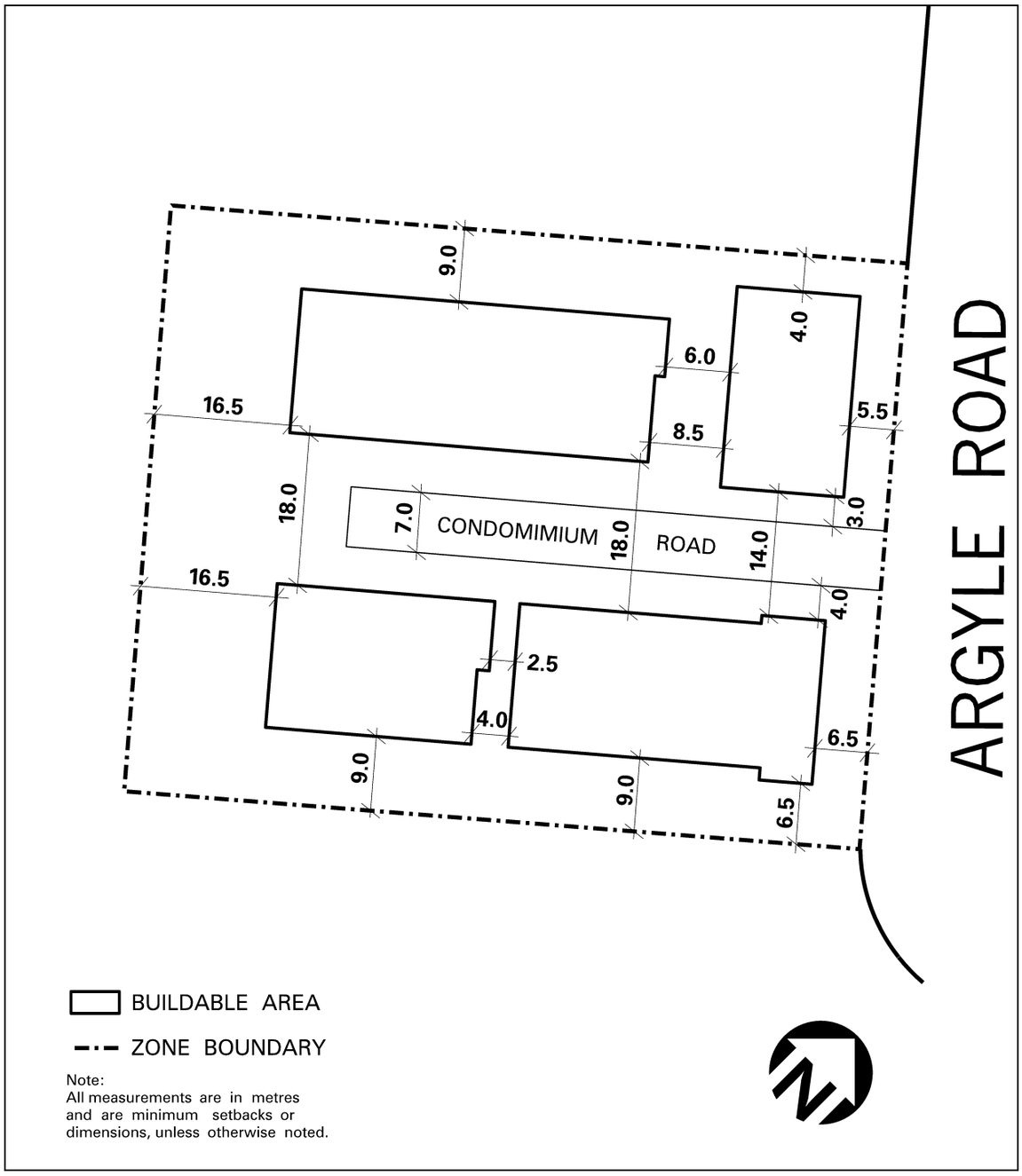
Exception RM9-4 continued on next page

4.14.2.4	Exception: RM9-4	Map # 39E	By-law: 0365-2007, *deleted by 0181-2018/LPAT Order 2019 February 15*, 0259-2021/ OLT Order 2023 March 03, 0208-2022
Exception RM9-4 continued from previous page			
4.14.2.4.11	All site development plans shall comply with Schedule RM9-4 of this Exception		
Holding Provision			
	The holding symbol H is to be removed from the whole or any part of the lands zoned H-RM9-4 by further amendment to Map 39E of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements: (1) delivery of an executed Development Agreement in a form and on terms satisfactory to The Corporation of the City of Mississauga ("City") and the Region of Peel ("Region"), including provisions related to the following items but not limited to: detailed design and construction of the required crash wall/berm abutting the Canadian Pacific Railway ("CPR") lands, grading and drainage of abutting lands, land dedication and easements, and municipal infrastructure detailed design; (2) submission of a risk assessment including the details of any proposed risk management measures, which must be to the satisfaction of the Transportation and Works Department for any lands being dedicated to the City; (3) confirmation that the required Record(s) of Site Condition(s) have been filed with the Ministry of Environment, Conservation and Parks, and the submission of all supporting environmental reports to the satisfaction of the Transportation and Works Department; (4) confirmation from CPR that final grading and drainage plans are satisfactory and certification from CPR and/or a professional consulting engineer that the ultimate design and construction of the required crash wall/berm complies with CPR design criteria.		



Schedule RM9-4
Map 39E

4.14.2.5	Exception: RM9-5	Map # 15	By-law: 0449-2007, *deleted by 0181-2018/LPAT Order 2019 February 15*, OLT Order 2023 May 16
In a RM9-5 zone the permitted **uses** and applicable regulations shall be as specified for a RM9 zone except that the following **uses**/regulations shall apply:			
Regulations			
4.14.2.5.1	Maximum number of **dwelling units** on all lands zoned RM9-5		101
4.14.2.5.2	Maximum **floor space index**		1.5
4.14.2.5.3	Maximum **height**: **flat roof**		16.0 m and 4 **storeys**
4.14.2.5.4	Notwithstanding Sentence 4.14.2.5.20 of this Exception, maximum projection of a **balcony**, **deck**, patio, and **porch**, exclusive of stairs, from the outermost face or faces of the **building**		3.4 m
4.14.2.5.5	Notwithstanding Sentence 4.14.2.5.20 of this Exception, maximum projection of an awning or window well, exclusive of stairs, from the outermost face or faces of the **building**		1.0 m
4.14.2.5.6	Notwithstanding Sentence 4.14.2.5.20 of this Exception, a **building** projection, with windows that cover a minimum of 50% of the total projection, may project a maximum of 0.61 m from the outermost face or faces of the **building**, provided that the **building** projection is not more than 3.6 m wide		
4.14.2.5.7	Minimum internal setback from a **porch** or patio, exclusive of stairs, located at and accessible from the **first storey** or below the **first storey** to a **condominium road**, sidewalk, walkway or **parking space**		0.0 m
4.14.2.5.8	Minimum internal setback from a front wall of a **building** to a **condominium road**, sidewalk, walkway or **parking space**		3.3 m
4.14.2.5.9	Minimum internal setback from a side wall of a **building** to a walkway		0.0 m
4.14.2.5.10	Minimum number of resident **parking spaces** per studio and one-bedroom **dwelling units**		1.1
4.14.2.5.11	Minimum number of resident **parking spaces** per two-bedroom **dwelling unit**		1.3
4.14.2.5.12	Minimum number of resident **parking spaces** per three-bedroom **dwelling unit**		1.4
4.14.2.5.13	Minimum number of visitor **parking spaces** per **dwelling unit**		0.25
4.14.2.5.14	Minimum setback of a **parking structure** constructed completely below finished grade to the **front lot line**		0.4 m
4.14.2.5.15	Minimum setback of a **parking structure** constructed completely below finished grade to the northerly side **lot line**		2.0 m
4.14.2.5.16	Minimum setback of a **parking structure** constructed completely below finished grade to the southerly side **lot line**		3.3 m
4.14.2.5.17	Minimum **landscaped buffer** abutting any side and **rear lot line**		2.3 m
4.14.2.5.18	Minimum setback from an **amenity area** to a **building** and to any type of road		0.0 m
4.14.2.5.19	Minimum contiguous private outdoor space per **dwelling unit** when located on a **balcony**		3.8 m^2
4.14.2.5.20	All site development plans shall comply with Schedule RM9-5 of this Exception		



Schedule RM9-5
Map 15

4.14.2.6	Exception: RM9-6	Map #	By-law: 0218-2010, 0179-2018, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.7	Exception: RM9-7	Map #	By-law: 0168-2011, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.8	Exception: RM9-8	Map #	By-law: 0176-2012, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.9	Exception: RM9-9	Map #	By-law: 0118-2017, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.10	Exception: RM9-10	Map #	By-law: 0010-2018, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.11	Exception: RM9-11	Map #	By-law: 0031-2018, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.2.12	Exception: RM9-12	Map #	By-law: 0171-2018, *deleted by 0181-2018/LPAT Order 2019 February 15*

4.14.3 RM10 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

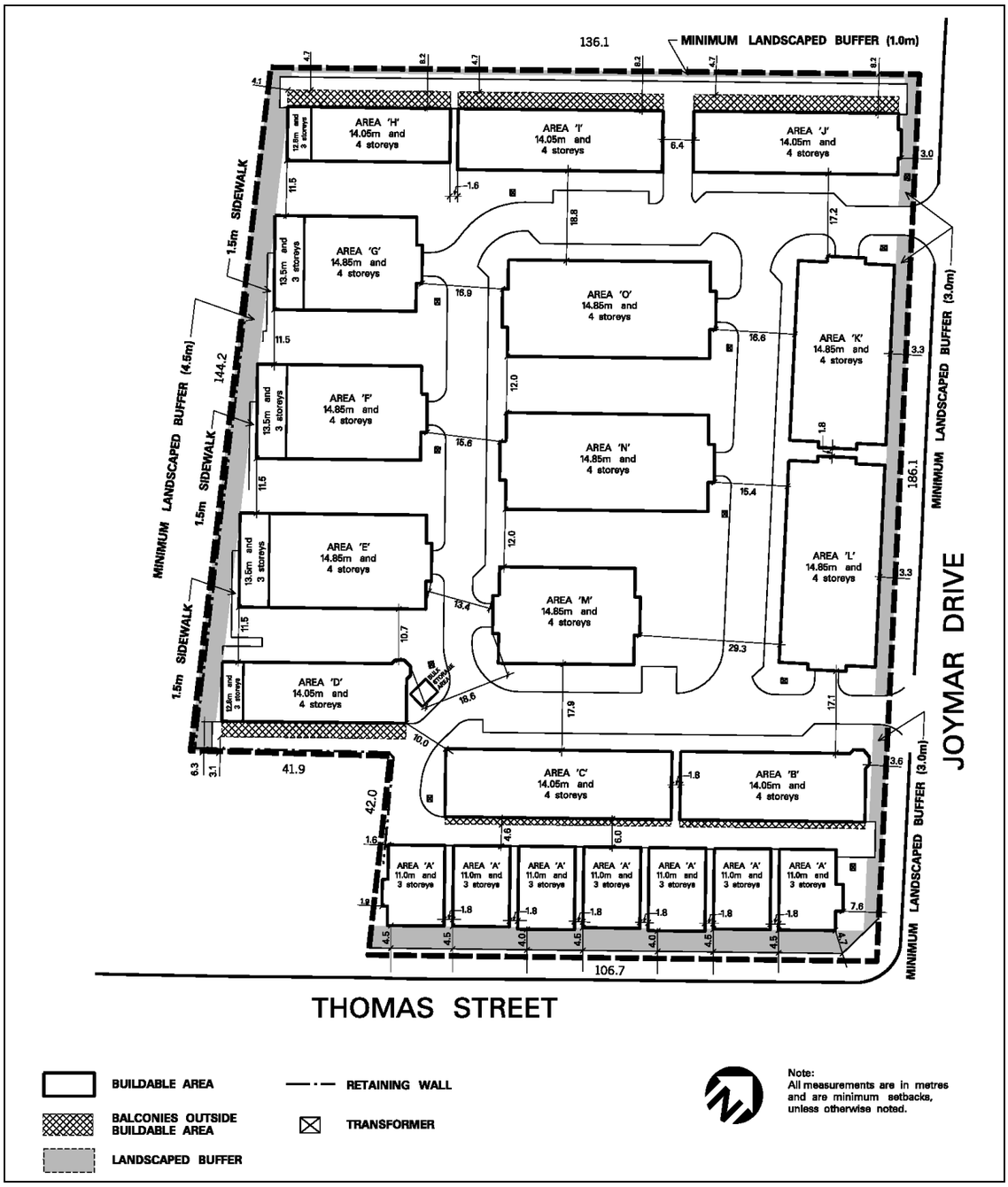
4.14.3.1	Exception: RM10-1	Map # 39E	By-law: LPAT Order 2020 July 22, 0208-2022
In a RM10-1 zone the permitted **uses** and applicable regulations shall be as specified for a RM10 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
4.14.3.1.1	(1) Semi-Detached (2) **Townhouse**		
Regulations			
4.14.3.1.2	The provisions contained in Subsections 2.1.14 and 2.1.30, Line 2.1 contained in Table 4.1.12.1, Article 4.1.12.4 and the regulations of Lines 8.1, 11.1, 11.3, 11.4, 11.8, 11.9, 12.4, 15.4 and 15.5 contained in Table 4.14.1 of this By-law shall not apply		
4.14.3.1.3	For the purposes of this By-law, all lands zoned RM10-1 shall be considered one **lot**		
4.14.3.1.4	**Height** shall exclude any mechanical penthouse and/or access stairs		
4.14.3.1.5	A **balcony** with a maximum area of 18 m^2 is permitted		
4.14.3.1.6	Notwithstanding Sentence 4.14.3.1.20 of this Exception, maximum projection of an awning, window, **chimney**, pilaster, corbel, window well, gas meter, air conditioning unit or **porch** inclusive of stairs and risers outside the **buildable area** identified on Schedule RM10-1 of this Exception		2.5 m
4.14.3.1.7	Maximum projection of a **wing wall** outside the **buildable area** identified on Schedule RM10-1 of this Exception		1.2 m
4.14.3.1.8	Maximum projection of a planter box and retaining wall outside the **buildable area** identified on Schedule RM10-1 of this Exception		2.1 m
4.14.3.1.9	Minimum number of visitor **parking spaces** per **dwelling unit**		0.2
4.14.3.1.10	Minimum width of a **condominium road** and an **aisle**		6.0 m
4.14.3.1.11	Minimum width of a sidewalk		1.5 m
4.14.3.1.12	Minimum **landscaped area**		33% of the **lot area**
4.14.3.1.13	Maximum encroachment into a required **yard** and **landscaped buffer** abutting the west property line		0.6 m
4.14.3.1.14	Minimum contiguous **amenity area**		555 m^2

Exception RM10-1 continued on next page

4.14.3.1	Exception: RM10-1	Map # 39E	By-law: LPAT Order 2020 July 22, 0208-2022

Exception RM10-1 continued from previous page

4.14.3.1.15	Semi-Detached:		
	(1)	the provisions contained in Sentences 3.1.1.4.3, 3.1.1.4.4 and 3.1.1.8.1 of this By-law shall not apply to the resident **parking spaces** in Clause 4.14.3.1.15(6) of this Exception	
	(2)	shall only be located within Area 'A', identified on Schedule RM10-1 of this Exception	
	(3)	minimum **dwelling unit width**	5.9 m
	(4)	**height** of dwellings shall be measured from **established grade**	
	(5)	notwithstanding Sentence 4.14.3.1.20 of this Exception, maximum projection of a **porch** or **deck** attached to the **front wall** of a dwelling, inclusive of stairs, outside the **buildable area** identified on Schedule RM10-1 of this Exception	2.0 m
	(6)	one additional **parking space** may be provided using stacked parking spaces	
4.14.3.1.16	**Townhouse**:		
	(1)	the provisions contained in Sentences 3.1.1.4.3, 3.1.1.4.4 and 3.1.1.8.1 of this By-law shall not apply to the resident **parking spaces** in Clause 4.14.3.1.16(4) of this Exception	
	(2)	shall only be located within Areas 'B', 'C', 'D', 'H', 'I', and 'J', identified on Schedule RM10-1 of this Exception	
	(3)	minimum **dwelling unit width**	4.2 m
	(4)	one additional **parking space** may be provided using stacked parking spaces	
	(5)	**tandem parking spaces** within a **garage** may be included in the calculation of the number of **parking spaces** required	
4.14.3.1.17	**Back to Back Townhouse**:		
	(1)	the provisions contained in Sentences 3.1.1.4.3, 3.1.1.4.4 and 3.1.1.8.1 of this By-law shall not apply to the resident **parking spaces** in Clause 4.14.3.1.17(6) of this Exception	
	(2)	shall only be located within Areas 'E', 'F', 'G', 'K', 'L', 'M', 'N', and 'O', identified on Schedule RM10-1 of this Exception	
	(3)	minimum **dwelling unit width**	4.5 m
	(4)	minimum number of resident **parking spaces** per two-bedroom **dwelling unit**	1.3
	(5)	minimum number of resident **parking spaces** per three-bedroom **dwelling unit**	1.4
	(6)	resident **parking spaces** may be provided using stacked parking spaces	
4.14.3.1.18	"Semi-Detached" means a **building** with two attached **dwelling units** that are divided vertically above grade by a **party wall** at least 5.0 m in length and at least 2.0 m in **height**		
4.14.3.1.19	"Stacked Parking Space" means a **parking space** that is positioned above another **parking space** and is accessed only by means of an elevating device		
4.14.3.1.20	All site development plans shall comply with Schedule RM10-1 of this Exception		



Schedule RM10-1
Map 39E

4.14.3.2	Exception: RM10-2	Map # 08	By-law: LPAT Order 2019 November 15
In a RM10-2 zone the permitted **uses** and applicable regulations shall be as specified for a RM10 zone except that the following **uses**/regulations shall apply:			
Regulations			
4.14.3.2.1	Minimum **landscaped area**		30% of the **lot area**
4.14.3.2.2	Minimum setback to a **lot line**		4.0 m
4.14.3.2.3	Minimum number of resident **parking spaces** per **dwelling unit**		1.0
4.14.3.2.4	Minimum number of visitor **parking spaces** per **dwelling unit**		0.15

4.14.3.3	Exception: RM10-3	Map # 08	By-law: LPAT Order 2019 November 15
In a RM10-3 zone the permitted **uses** and applicable regulations shall be as specified for a RM10 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
4.14.3.3.1	(1) **Passive Recreational Uses** (2) **Active Recreational Uses** (3) **Stormwater Management** Facility		
Regulations			
4.14.3.3.2	Minimum **landscaped area**		30% of the **lot area**
4.14.3.3.3	Minimum setback to a **lot line** or a road		4.0 m
4.14.3.3.4	Minimum number of resident **parking spaces** per **dwelling unit**		1.0
4.14.3.3.5	Minimum number of visitor **parking spaces** per **dwelling unit**		0.15
4.14.3.3.6	**Uses** contained in Sentence 4.14.3.3.1 of this Exception shall comply with the OS1 zone regulations contained in Subsection 9.2.1 of this By-law		